

25STCV23045 25STCV23045

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TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

August 13, 2026

CASE NUMBER

25STCV23045

MOTION

Motion to Quash Subpoena

MOVING PARTY

Plaintiff Keniesha Robinson

OPPOSING PARTY

Defendant Los Angeles County Metropolitan Transportation

Authority

MOTION

Plaintiff

Keneisha Robinson ("Plaintiff") brought the instant action against Defendant Los Angeles County Metropolitan Transportation Authority ("Defendant"), alleging discrimination, retaliation, failure to prevent discrimination and retaliation, and other related employment claims. Plaintiff moves to quash subpoenas Defendant served on Deponents Kaiser Permanente—Central ROI Unit (Medical Records Dept.) and Kaiser Permanente—Central ROI Unit (Psych Records Dept.) ("Deponents"). Deponents are Plaintiff's medical providers.

In the subpoenas, Defendants seek all of Plaintiff's lifetime medical, pharmacy, and billing records.

ANALYSIS

If a subpoena requires the production of documents, the Court may quash the subpoena entirely or modify it. (Code Civ. Proc., § 1987.1, subd. (a).) In ruling on a motion to quash, "the Court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive." (Code Civ. Proc., § 1987.2, subd. (a).)

Plaintiff has a right of privacy in her medical records. For this reason, the Court cannot order disclosure of the medical records, unless it determines such disclosure serves a compelling interest. (See *Britt v. Superior Court* (1978) 20 Cal.3d 844, 855-856.) Plaintiff alleges in the complaint she required accommodations from Defendant because she "began experiencing gradually worsening health problems she did not realize were related, including nausea, diarrhea, hives, fevers, headaches, difficulty breathing, vision problems, eye inflammation and redness, and insomnias," and her doctors diagnosed her with severe sarcoidosis, chronic bronchitis, and obstructive sleep apnea. (Complaint, ¶ 16.) Plaintiff also stated in response to discovery Defendant's failure to accommodate her disability caused her to experience anxiety and depression. (See, e.g., Declaration

of Victoria Ramirez in Support of Defendant's Opposition, Exhibit C, pp. 15-16, 33-35.)

A plaintiff who

seeks to recover for personal injuries waives the physician-patient privilege to some extent but does not waive the privilege with respect to the plaintiff's lifetime medical history. (See Britt, supra, 20 Cal.3d at pp. 863-864 [a defendants seeking discovery are not entitled to the entire lifetime medical history of plaintiffs, as plaintiffs are "not obligated to sacrifice all privacy to seek redress for a specific (physical,) mental or emotional injury"; while they may not withhold information which relates to any physical or mental condition which they have put in issue by bringing [a] lawsuit"].)

Plaintiff's

medical records, which relate to her sarcoidosis, bronchitis, sleep apnea, anxiety, depression, and other health problems she noted in her complaint and in discovery responses, are directly relevant to this action. Accordingly, Plaintiff's motion to quash is granted as to an order limiting the subpoenas for Plaintiff's medical, billing, and pharmacy records to records pertaining to those health issues.

Further, the

subject subpoenas are not limited to a period of time relevant to this action. The production of any relevant documents must be tied to a reasonable time period. In its opposition, Defendant suggests a time frame from January 1, 2028 to the present based on Plaintiff's assertion her symptoms began in 2018 and she continued to experience them up to the time she was terminated on July 26, 2024. (See Defendant's Opposition, pp. 7, 10.) Given Plaintiff's allegations, the Court concludes a more reasonable limitation as to time would be from January 1, 2018 to July 26, 2025 (one year after Plaintiff's termination from employment).

Plaintiff requests

a "First Look Agreement" without citing any authority for such an agreement, whether by way of a stipulation the parties have agreed to or otherwise, nor has she specified the nature of such an agreement.

The Court cannot order vague relief without authority for doing so. Moreover, to the extent the parties need to fashion an appropriate protective order regarding discovery to be conducted in this action, they are free to do so.

CONCLUSION AND ORDER

The

motion to quash is granted in part and denied in part, as noted above. Production of responsive documents in keeping with the Court's ruling is to take place within 30 days after notice of this order, unless the parties agree otherwise.

Plaintiff is to give notice of the

Court's order and to file proof of service of same.